

धारा 173 भारतीय नागरिक सुरक्षा अधिनियम

फॉर्म नं. 1

प्रथम सूचना प्रतिवेदन (भाग 154 द. प्रक्रिया अधिनियम के अन्तर्गत)

FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.अ.सो.-II

S.P.E.C.-II

173 BNSS

दुक नं. 1432
Book No.

क्रम सं. 009
Serial No.

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
Mumbai CBI, ACB, Mumbai RC0262024A0046 17/12/2024

2. (1) विधान : धाराएं :
Act The BNS 2023 Sections 61 (2)
- (2) विधान : धाराएं :
Act PC Act, 1988 Sections 7, 7A, 8, 9, 10, 11 & 12
(As amended in 2018)
- (3) विधान : धाराएं :
Act Sections
- (4) अन्य विधान एवं धाराएं :
Other Acts & Sections

3. (क) प्रतीत अपराध : Criminal Conspiracy, bribing of public servant, taking undue advantage to influence public servant by corrupt or illegal means or by exercise of personal influence, Paying bribe to public servant, bribing a public servant by a commercial organization, obtaining undue advantage without consideration by public servant, abetment etc.
- (a) Suspected Offence
- (ख) दिन : दिनांक समय
(b) Day Date Time

During the year 2024

- (ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date 17/12/2024

कायमी अपराध : 03 दिनांक समय
Entry No. Date 17/12/2024 Time 1755 Hrs.

4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral Written

5. घटना का स्थान
Place of Occurrence Mumbai, Maharashtra.

- (क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS

बीट नं. / Beat No.

(ख) पता:
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name

Shri Ranjeet Kumar Pandey

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रियता :
(d) Nationality **Indian**

(ङ) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No Date of Issue Palce of Issue

(च) व्यवसाय
(f) Profession **Service**

(छ) पता - Dy. Supdt. of Police, CBI ACB Mumbai
(g) Address CBI Building, BKC, Bandra (East), Mumbai

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:
Details of known / suspected / unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

- (1) As per list enclosed
(2)
(3)

LIST OF ACCUSED PERSONS IN RC0262024A0046 – CBI ACB MUMBAI

1. Shri CPS Chauhan, IRS Joint Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
2. Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner, O/o Development Commissioner SEEPZ SEZ, Andheri, Mumbai
3. Smt. Rekha Nair, Assistant Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
4. Shri Manish Kumar, Asst. Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
5. Shri Ravindra Kumar, Assistant, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
6. Shri Rajesh Kumar, Upper Division Clerk, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
7. Shri Sanjiv Kumar Meena, Authorized Officer, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai
8. Shri Manoj Joglekar (Private person)
9. Shri Mithilesh Tiwari (Private person) and
10. Other unknown public servants /private persons



8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No delay

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

Nil

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen N.A.

11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any N.A.

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

As per separate sheet attached.


17.12.2024
(Suresh Kumar)
SP CBI ACB Mumbai.

FIRST INFORMATION

A written complaint dated 17.12.2024 has been received from Shri Ranjeet Kumar Pandey, Dy.SP, CBI, ACB, Mumbai and the same is enclosed herewith and reproduced below

Confidential

Date: 17.12.2024

To,

The Superintendent of Police
CBI ACB Mumbai

Sub: Complaint against Shri CPS Chauhan, IRS, Joint Development Commissioner; Dr. Varawantkar Prasad Hanumantrao, IRS, Deputy Development Commissioner & Other officers all working in the O/o Development Commissioner SEEPZ, Andheri (East), Mumbai and other private persons -reg.

Sir,

An information from reliable source was received that Shri CPS Chauhan, IRS -2009 presently posted as Joint Development Commissioner, SEEPZ-SEZ, Andheri (East), Mumbai alongwith other officers of SEEPZ in connivance of private persons are engaged in collusive corruption and collecting undue advantage from the parties functioning from SEEPZ and other related parties in the matter of space allotment, disposal of imported goods which are not utilized in manufacturing, sale of duty free imported goods without paying duty, engagement of security persons & daily wagers and is favoring civil contractors in lieu of monetary consideration. It was also learnt from source that Shri CPS Chauhan is getting extension by paying hefty bribe to the higher-ups.

2. It is also further learnt from sources that Shri Samir Daga (9892596777) and Shri Manoj Joglekar (Mobile No- 9833978289) both private persons are collecting money on behalf of Shri CPS Chauhan and other officers.

3. Accordingly, in order to verify the aforesaid allegations, a Joint Surprise Check (JSC) is being conducted at the office of Development Commissioner SEEPZ, Andheri (East), Mumbai on 17.12.2024, in presence of officers and officials of Vigilance Division of Department of Commerce, Ministry of Commerce & Industry, Government of India namely S/Shri KC Raju, Under Secretary (Vigilance), Tarun Gupta, Section Officer(Vigilance), Shailesh Rana, Under Secretary (Supply Div.), Abhishek Singh, ASO (Supply Div.) Vigilance Dept., Ministry of Commerce, GOI in presence of independent witnesses namely Sh. Bantee Kumar, CCTC, O/o Head TC Office Bandra, Western Railway, Sh. Dasharath K Waje, AAO, LIC, Branch Satellite Office, BKC, Sh. Ramesh Kumar, Junior Clerk Cum Typist, O/o PCEE, Western Railway(HQ), and Sh. Ajit Barla, Senior Manager, Vigilance, GIC of India, Mumbai.

4. During JSC, Shri Manoj Joglekar was traced at SEEPZ, Andheri (East) Mumbai and on preliminary enquiry he admitted collecting of bribe on direction of Officers posted at SEEPZ



SEZ and on their behalf. He also informed that bribes so collected by him is kept in his office at SEEPZ campus and he can produce the same before JSC team. As such, he was allowed to do so.

5. That, Shri Manoj Joglekar brought one large white colored bag and other containing 03 small bags (containing bribe money collected by him) from his office and produced the same before the JSC team in presence of independent witnesses. He was enquired in presence of independent witnesses and officers of Vigilance Division of Department of Commerce, Ministry of Commerce & Industry, GOI and he confirmed that he used to collect bribe from parties as and when directed by said officers namely Shri CPS Chauhan, Joint Development Commissioner, Dr. Varawantkar Prasad Hanumantrao, IRS, Deputy Development Commissioner and other officers and officials of SEEPZ SEZ Mumbai.

6. That, Shri Manoj Joglekar further informed that on the direction Shri CPS Chauhan, Joint Development Commissioner, he used to collect bribe money. Recently on 12.12.2024, he collected Rs. 15 Lakh as a bribe from one Shri Shailendra Jani of M/s. The Design House. On the same day, Shri Manoj Joglekar contacted Shri Venktesh of M/s. Design House and enquired about payment to Shri CPS Chauhan. On which Shri Venktesh told him that he will communicate the same to Shri Jani. On 12.12.2024 between 2-2.30 PM, Shri. Shailendra Jani contacted Shri Manoj over WhatsApp call and met him near his office at SEEPZ Andheri, Mumbai and handed him over bribe amount of Rs. 15 Lakh with a request to handover the same to Shri CPS Chauhan. After, receipt of bribe money from Shri Jani at about 5.30 PM, Shri Manoj Joglekar visited office of Development Commissioner at SEEPZ Andheri Mumbai and handed over said cash of Rs. 15 Lakh to Shri CPS Chauhan. On 13.12.2024, Shri CPS Chauhan called Shri. Manoj Joglekar through his staff and Shri Manoj Joglekar met Shri CPS Chauhan at his office. Shri CPS Chauhan handed over Rs. 8 Lakh (16 bundles of Rs. 500/- each) to Shri Manoj Joglekar in 04 brown colored envelopes and asked him to distribute it equally Rs. 2 Lakh each amongst S/Sh. Manish Kumar, ADC, Ravi @ Ravinder, Assistant, Rajesh Kumar, UDC and Smt. Rekha Nair, ADC. Accordingly, Shri Manoj Joglekar handed over cash Rs. 4 Lakh to Smt. Rekha Nair, ADC (Rs. 02 Lakh of her share and Rs. 02 Lakh as a share of Shri Rajesh Kumar, UDC, who had left office early) with request her to handover it to Rajesh Kumar. Further, Shri Manoj handed over Rs. 02 Lakh share of Ravi @ Ravinder, Assistant who instructed him to keep the same in dickie of his two-wheeler parked in office premises. However, Shri Manoj Joglekar could not handover share of Shri Manish Kumar, ADC, as he could not locate Shri Manish Kumar. Finally, on 16.12.2024, when Manoj Joglekar met Manish Kumar at his office, Manoj Joglekar handed over Rs. 2 Lakh cash of bribe money to Shri Manish Kumar, ADC informing him that said amount is given as per the direction of Shri CPS Chauhan as his share.

7. During JSC proceedings, Shri Manoj Joglekar informed JSC team that he also used to collect bribe money on instruction of S/Shri Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner; Smt. Kanchi Gupta, Specified Officer; Sanjiv Kumar Meena, Ranjit Rawool, both Authorized Officers and Shri Anil Chaudhary, the then Specified Officer, SEEPZ, Andheri (East), Mumbai. Shri Manoj Joglekar further informed JSC team in presence of independent witnesses that he had collected bribes on the instruction of above-mentioned officers, which are kept in aforesaid 04 bags produced by him to JSC team. He

also informed that mostly bribe money in form of cash is received in envelopes, on which the details of parties, bribe-giver & name /designation of officer are written in abbreviated/code forms. Shri Manoj Joglekar has also informed that he used to maintain hand-written notes specifying the details of parties from whom he received the bribes on behalf of SEEPZ Officers including those handed over to him by another private person viz. Shri Mithilesh Tiwari (9820676806).

8. That, Shri Manoj Joglekar also informed JSC team in presence of independent witnesses that apart from the cash he produced before JSC team, the bribe money collected on the instruction and behalf of Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner, he handed over 15 Lakh cash to Dr. Prasad Hanumantrao Varawantkar, IRS, DDC in his office at just before announcement of model code of conduct for Maharashtra Legislative Assembly Election, somewhere in October, 2024.

9. The aforesaid 04 bags containing bribe amount in envelopes/ bags were analyzed by JSC team in presence of independent witnesses and as informed by Shri Manoj Joglekar it is found that around 22 envelopes containing name of different company / code words like RR and SM was written. Shri. Joglekar informed that the envelop containing bribe money coded as SM and RR belongs to Shri. Sanjiv Kumar Meena and Ranjit Rawool and their team members respectively. One separate envelope on which RR was written containing bribe money of Rs. 63,500/- was meant for Ranjit Rawool only. Envelopes contains bribe money coded as SO are meant for Smt Kanchi Gupta, Specified Officer. On a plastic bag containing bribe money was coded as AC and Anil is meant for Shri Anil Chaudhary, the then Specified Officer. Envelopes coded as DDC and in one orange colour plastic bag containing bribe money was meant for Dr Prasad Hanumantrao Varawantkar, IRS, 02 envelopes containing cash coded as Rajesh are meant for Rajesh Kumar UDC. 02 envelopes containing cash coded as "Narl", but Shri. Manoj could not recollect the name right now. Finally Shri. Manoj Joglekar informed that total bribe amount available with him would be to the tune of approximately Rs. 60 lakhs, which are kept in different envelopes. He produced the same before JSC team today.

10. Thereafter, Sh. Shailendra Jani, CFO of M/s. The Design House Pvt. Ltd. was contacted by JSC team and he was asked to join JSC proceedings at office of SEEPZ SEZ Andheri. Accordingly, Shri Jani joined proceedings and he was enquired about the bribery incident as stated by Shri Manoj Joglekar. On which Sh. Shailendra Jani confirmed the same in presence of JSC team and independent witnesses. He further informed that, an application was made for allotment of office space at SEEPZ for M/s. ES Creation LLP but due to some reason it was decided to cancel the request of allotment. In this regard, he met Shri CPS Chauhan, JDC who demanded Rs.15 Lakh as bribe money and further told him that they have spent their resource and valuable time in this matter. Shri CPS Chauhan threatened Shri Jani that if he does not pay the bribe amount, then his day-to-day work of M/s. Design House and M/s. SNC Jewelers at SEEPZ SEZ would suffer. Shri CPS Chauhan directed Shri Jani to hand over the said bribe to Shri Manoj Joglekar. Fearing the adverse impact on business, Shri Jani handed bribe of Rs. 15 Lakh to Shri Manoj, as directed by Shri CPS Chavan. He also submitted a written complaint dated 17.12.2024 against Shri CPS Chauhan for demand and acceptance of bribe of Rs. 15 Lakh.



11. Shri Manoj Joglekar also informed JSC team that one Shri Samir Mayeker of M/s. Jasraj Kalyanji CHA has handed over an envelope containing bribe money in cash given on behalf of M/s. 'MSJPL'. Shri Manoj Joglekar further informed JSC team that this bribe money was meant for Dr. Varawantkar Prasad Hanumantrao, IRS, DDC. The attempts were made to locate Shri Samir Mayeker however he could not be located so far.

12. That, S/Shri CPS Chauhan, IRS, Joint Development Commissioner; Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner; Smt. Rekha Nair and Manish Kumar, both Asst. Development Commissioners; Ravindra Kumar, Assistant, Rajesh Kumar, Upper Division Clerk, Sanjiv Kumar Meena, Authorized Officer all working in the O/o Development Commissioner SEEPZ SEZ Andheri Mumbai present in the office were asked about receipt of undue advantages from various persons as mentioned above on which S/Sh CPS Chauhan, IRS, Joint Development Commissioner; Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner; Smt. Rekha Nair, Asst. Development Commissioner, Rajesh Kumar, Upper Division Clerk admitted having receipt of the undue advantage as stated above whereas S/Shri Manish Kumar, Asst. Development Commissioner; Ravindra Kumar, Assistant, Authorized Officer and Sanjiv Kumar Meena, and all working in the O/o Development Commissioner SEEPZ SEZ Andheri Mumbai started giving evasive answer.

13. Out of the names of the officers/officials on whose instructions and behalf, Shri Manoj Joglekar collected bribe money, officers namely Smt. Kanchi Gupta, Specified Officer, Shri Ranjit Rawool, Authorised Officer and Anil Chaudhary, the then Specified Officer, SEEPZ were not found present on the spot. It is learnt that Smt. Kanchi Gupta is on leave whereas Shri Ranjit Rawool and Anil Chaudhary are transferred out from SEEPZ SEZ Mumbai. As such, their roles could not be verified and will be looked into in due course.

14. The aforesaid facts and circumstances emerged during JSC, revealed commission of cognizable offences on the part of S/Shri CPS Chauhan, IRS Joint Development Commissioner, Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner; Smt. Rekha Nair and Shri Manish Kumar, both Asst. Development Commissioners; Shri Ravindra Kumar, Assistant, Shri Rajesh Kumar, Upper Division Clerk, Shri Sanjiv Kumar Meena, Authorized Officer all working in the O/o Development Commissioner SEEPZ SEZ Andheri Mumbai; Shri Manoj Joglekar, Shri Mithilesh Tiwari and other unknown public servants /private persons u/sec. 61 (2) of the BNS, 2023 and Sec. 7, 7-A, 8, 9, 10, 11 and 12 of PC Act, 1988 (As amended in 2018) and substantive offences thereof.

It is therefore recommended that FIR may kindly be registered against above mentioned persons and investigation may kindly be taken up.

Submitted please.

Sd/-x x

(Ranjeet Kumar Pandey)
Deputy Supdt. of Police,
CBI ACB Mumbai

The facts mentioned in the report above discloses the commission of offences punishable u/s 61 (2) of the BNS, 2023 and Sec. 7, 7-A, 8, 9, 10,11 and 12 of PC Act, 1988 (As amended in 2018) and substantive offences thereof against Shri CPS Chauhan, IRS Joint Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (2) Dr. Prasad Hanumantrao Varawantkar, IRS, Deputy Development Commissioner, O/o Development Commissioner SEEPZ SEZ, Andheri, Mumbai, (3) Smt. Rekha Nair, Assistant Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (4) Shri Manish Kumar, Asst. Development Commissioner, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (5) Shri Ravindra Kumar, Assistant, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (6) Shri Rajesh Kumar, Upper Division Clerk, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (7) Shri Sanjiv Kumar Meena, Authorized Officer, O/o Development Commissioner, SEEPZ SEZ, Andheri, Mumbai, (8) Shri Manoj Joglekar (Private person), (9) Shri Mithilesh Tiwari (Private person) and other unknown public servants /private persons.

Hence a regular case is registered and entrusted to Shri. Pankaj Bansal, Addl.SP, CBI, ACB, Mumbai for investigation and report.


17.12.2024
(Suresh Kumar)
Supdt. Of Police
CBI ACB Mumbai

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or
A Regular Case is registered

- | | | | |
|-------------------------------------|-------------------------------|-----|---------------------------|
| (2) निर्देशित (जांच अधिकारी का नाम) | रैंक | नं. | जांच हेतु लिया गया |
| Directed (Name of IO) | Rank | No. | Took up for investigation |
| Shri. Pankaj Bansal | Addl. Supdt. of Police | | Yes |
| | CBI : ACB : Mumbai | | |

- (3) कारण से जांच के नामजूर
Refused investigation due to
- अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया
Transferred to PS
- जिला
District
- क्षेत्राधिकार के आधार पर
on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वाकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R. O. A. C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station
नाम / Name
(पद) / Rank

(Suresh Kumar)
SP CBI ACB Mumbai
No.

md
12.12.2024

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	* लिंग (Sex)	* जन्म की तारीख / वर्ष Date / year of Birth	* शारीरिक गठन (Built)	* ऊंचाई से. मी. में (Height) (in Cms)	* वर्ण (Complexion)	* पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.